

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2020-5587

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF KELLY HOLMES, LICENSE NO. LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Kelly Holmes ("Applicant"), as follows:

1. By application dated May 30, 2020, Applicant applied for licensure by endorsement to practice as a licensed professional counselor ("LPC") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2020-5587. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. Applicant was licensed to practice medicine in the state of Colorado on January 16, 1992, and was issued license number DR-31434.
 - b. On or around April 10, 1997, Applicant entered into a Stipulation and Final Agency Order with the Colorado Medical Board ("CMB") due to substance abuse. On or around July 10, 1997, the CMB determined Applicant had relapsed and therefore failed to comply with the April 1997 Order. As a result, the CMB revoked Applicant's medical license.
 - c. On or about January 16, 2007, Applicant pled guilty to Aggravated Motor Vehicle Theft, in Case No. 2006CR1016, in District Court, El Paso

County, Colorado. Applicant was sentenced to twelve (12) months unsupervised probation. Theft of a motor vehicle in the state of Washington is a Class B felony.

d. On or about September 21, 2011, Applicant pled guilty to Criminal Impersonation, a Class 6 felony, in Case No. 2010CR612, in District Court, Douglas County, Colorado. Applicant was sentenced to eighteen (18) months in an intensive supervision program. Criminal impersonation in the First Degree in the state of Washington is a Class C felony.

e. On or around May 21, 2014, Applicant entered into an Agreement to Practice with Conditions with the Washington Department of Health. Applicant was granted a conditional agency affiliated counselor credential due to her Colorado Medical license being revoked. Applicant agreed to supervised probation through a monitoring program. Applicant completed probation on August 2, 2016.

f. On or about May 30, 2020, Applicant applied for licensure in the state of Colorado, and her licensure request is currently pending.

g. On her Application, Applicant answered "yes" to the question which states "Have you ever had public disciplinary action taken against your license by any board or licensing agency in any state or country?"

h. Applicant admitted to felony convictions and previous discipline in Colorado and Washington.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of section 12-245-224(1)(a) and (b), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(a) Has been convicted of or pled guilty or nolo contendere to a felony or received a deferred sentence to a felony charge. A certified copy of the judgment of a court of competent jurisdiction of the conviction or plea is conclusive evidence of the conviction or plea. In considering the disciplinary action, each board is governed by sections 12-20-202 (5) and 24-5-101;

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title

12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-245-214 and 12-245-226(3)(a), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-245-214 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license to practice as a LPC in the State of Colorado is hereby placed on probation for three (3) years, commencing from the effective date of this Order or the date Applicant's practice monitor is approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a LPC in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the period of probation, Applicant's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Applicant shall submit, in writing, three (3) proposed practice monitors for the Board's approval. Applicant shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.

12. Applicant must have a practice monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a practice monitor is approved unless an extension is granted by the Board.

13. After the Board's written approval of the practice monitor, Applicant and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until the written contract for practice monitoring is executed unless an extension is granted by the Board. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Applicant's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Board determine from the practice monitor's evaluation that Applicant cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability, or competence for practice, Applicant shall immediately cease any part of the practice that the Board determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Applicant is not qualified, competent, and safe to practice. Once

Applicant satisfies the Board that she is qualified, competent, and safe to fully practice, Applicant may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Applicant and her practice monitor must review and discuss each of Applicant's active cases at least once every month in order to allow the practice monitor to be able to determine whether Applicant is practicing as a LPC in accordance with generally accepted standards of practice and with skill and safety for her clients.

17. If, after one (1) year, Applicant has adhered to all terms and conditions of this Order, Applicant may request reduction of the frequency of practice monitoring. Request for reducing the frequency of practice monitoring must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that she has adhered to all terms and conditions of this Order. It is at the Board's discretion whether or not to approve Respondent's request to request reduction of the frequency of practice monitoring.

18. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

19. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

20. If at any time the practice monitor believes Applicant is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice of professional counseling.

21. Applicant shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

22. Applicant or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days

before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

TERMS AND CONDITIONS

23. Applicant will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

24. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

26. In the event Applicant relocates at any time at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

27. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

28. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

29. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

31. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect

the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

32. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

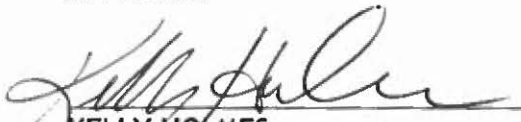
33. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

34. This Order shall be admissible as evidence at any hearing held before the Board.

35. This Order shall be a public record in the custody of the Board.

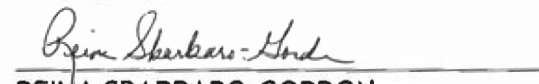
AGREED TO AND ACCEPTED BY:

APPLICANT


KELLY HOLMES
LICENSE No. LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


REINA SBARBARO-GORDON
Program Director

Effective this 28 day of June,
2021.

APPROVED AS TO FORM
FOR RESPONDENT


ROBERT A. LEES
Robert A. Lees & Associates